that the Constitution allowed the Government to appeal any dismissal, *id.*, at 7–12, and stated that the bill was "intended to be liberally construed so as to effectuate its purpose of permitting the Government to appeal from *dismissals* of criminal prosecutions by district courts in all cases where the Constitution permits . . . ." *Id.*, at 18 (emphasis added). On the other hand, the Committee believed that the Constitution barred any appeal from an acquittal or from a dismissal amounting to an acquittal; "[a] true acquittal is based upon the insufficiency of the evidence to prove an element of the offense." *Id.*, at 11.

The same understanding was demonstrated by the bill's sponsor when he presented the Senate Report on the floor. He summarized the bill as providing that "the Government has the right to appeal any ruling by a district court in a criminal case which dismisses a prosecution in favor of a defendant except where the ruling is an acquittal"; he also presented a letter from the Solicitor General explaining that the bill would allow "an appeal from any dismissal except one amounting to a 'judgment of acquittal,' *i. e.*, a factual judgment that the defendant is not guilty of the crime charged and is thereby entitled to protection against double jeopardy." 116 Cong. Rec. 35659 (1970) (remarks of Sen. Hruska).

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on grounds having nothing to do with any defect in the indictment, or the construction or invalidity of the underlying statute." *Ibid.* The Report gives as examples dismissals for failure of the prosecution to comply with discovery or for lack of timely prosecution. The Report then refers to the use of old common-law terms like " 'judgment sustaining a motion in bar,' " giving rise to problems like that which the Court confronted in *United States* v. *Sisson*, *supra*. S. Rep. No. 91–1296, p. 6.

Subpart B of the Senate Report deals with "The Attachment of Jeopardy as a Limitation on Appeals from Dismissals." This section was concerned with appeal of "a decision sustaining a motion in bar after jeopardy has attached," *ibid.* Congress was concerned that a defendant could reserve issues of law until the trial and then preclude any possible review. *Id.*, at 7. An example was a case in which the trial judge ruled the Selective Service Act unconstitutional during the trial. *Id.*, at 11.